

HB 2055 -- ELECTRONIC COMMUNICATION DEVICES

SPONSOR: Vernetti

COMMITTEE ACTION: Voted "Do Pass" by the Standing Committee on Crime and Public Safety by a vote of 18 to 0.

Currently, the State preempts the field of regulating the use of electronic communication devices by the operators of motor vehicles.

This bill changes the language of the preemption so that local laws, ordinances, or regulations are allowed as long as they do not conflict with State law on the subject.

This bill is similar to HB 1489 (2025).

PROPOSERS: Supporters say that the bill would fix a loophole that keeps municipalities from enforcing the hands-free law. This would allow municipalities to have ordinances of their own as long as they mirror state statute and do not conflict. Currently, the municipalities have to send the relevant tickets to county court; they cannot send them to their local courts. With an ordinance they could handle it on a local level. The county courts are already backlogged with other issues, so this keeps these smaller, municipal issues with the municipalities. Municipal courts move faster, and state courts are already overloaded. Right now, law enforcement has to file a probable cause statement for a warrant like they would if they want an arrest warrant. This is because it's going through the county court. The municipal court is much more flexible and the penalties are usually lower. If an officer wants to charge a municipal charge and a state charge, those can't be separated out so they would have to both go through the state court via a probable cause statement. Without this law, municipalities can't help with roadway safety.

Testifying in person for the bill were Representative Vernetti; Arnie Dienoff; Scott Craig, Sunrise Beach Police Department; Scott John, California Police Department; and Bradley Lynn, Kansas City Police Department.

OPPOSERS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.